

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-16

IWG INTERNATIONAL WOOD GROUP OF SC AND HONEST TRADING
Complainants

VERSUS

DB SCHENKER USA, INC.
Respondent

RESPONDENT’S MOTION TO COMPEL INITIAL DISCLOSURES

COMES NOW, Respondent, DB Schenker USA, Inc. (“DB Schenker”), by and through its undersigned counsel, and pursuant to the Federal Maritime Commission’s (“FMC”) Rules of Practice and Procedure 46 C.F.R. § 502.150, hereby moves to compel each of the Complainants, Honest Trading International LLC (“Honest”) and IWG International Wood Group of SC (“IWG”) to serve its required initial disclosures and in support thereof, states as follows:

PROCEDURAL BACKGROUND

1. This proceeding was initiated by each of the Complainants, IWG International Wood Group of SC and Honest Trading International LLC, on August 5, 2025.
2. The Presiding Officer ordered the parties to serve their initial disclosures “as soon as practicable, but no later than December 5, 2025”.
3. To date, Honest has failed to serve any initial disclosures.
4. On December 18, 2025, the undersigned emails IWG and Honest to advise that their Initial Disclosures were long overdue and to please provide by the next day.

5. Having received no response, the undersigned followed up on December 22, 2025, requesting dates and times to hold a meet and confer before filing the instant motion.

6. The next day, IWG responded that it would be providing the documents “shortly”.

7. The undersigned responded, again asking for a time to meet and confer.

8. IWG responded that they could speak at 3:00pm on December 23, 2025.

9. At no time did Honest ever respond. As such, the undersigned responded, asking Honest if it will also attend the call.

10. Honest did not respond. Instead, **IWG** responded, advising that “I need to see if Honest Trading can have someone. They might be out of country in China.”

11. The undersigned inquired whether Honest is a separate entity and advised that it also needed to be on the call.

12. Again **IWG** responded, confirming that Honest was a separate entity, but “the representatives for their company are currently in China and will not be available to get on the call.”

13. Thereafter, **IWG** filed the attached Initial Disclosures, on behalf of **both** IWG and Honest.

14. Notably, these were filed and not served. But also notably, the documents were not signed by anyone – rather, there is just a written line on the bottom “Respectfully submitted, IWG International Wood Group of SC Honest Trading International LLC”.

15. The undersigned then advised Craig Swilley of IWG that he did not “represent Honest Trading” (he is not an attorney), and could not sign on their behalf.

16. Mr. Swilley responded: “No document was signed on their behalf. Any document was signed by a representative of Honest Trading.”

17. To sum up:
- a. Honest Trading never responded to any requests for a meet and confer, presumably because they were “unavailable”
 - b. But IWG was apparently able to get in touch with them to learn they were not in the country
 - c. Honest Trading did not provide the Initial Disclosures.
 - d. Rather, IWG then provided them, and stated that they were signed by Honest Trading – who was unavailable for an email or call, but was apparently available to “sign” Initial Disclosures.
18. Furthermore, with respect to Initial Disclosures themselves, same are also deficient for the following reasons:
- a. There is no information, including addresses, titles or even names of employers for the majority of the disclosure witnesses
 - b. There is no itemization of damages. Rather, there is a lump damage sum claimed for \$803,997.98 – with list of damages that, when added up, could range from \$100,000 to \$5 million. And there is no distinction as to which damages are claimed by which Complainant.

DISCUSSION

19. Section 502.141 requires all parties to provide the following initial disclosures:
- (1) The name and, if known, the address and telephone number of each individual likely to have discoverable information that the disclosing party may use to support its claims or defenses, unless the use would be solely for impeachment;
 - (2) A copy, or a description by category and location, of all documents, electronically stored information, and tangible things that the disclosing party has

in its possession, custody, or control and may use to support its claims or defenses, unless the use would be solely for impeachment;

(3) An estimate of any damages claimed by the disclosing party who must also make available for inspection and copying the documents or other evidentiary material, unless privileged or protected from disclosure, on which the estimate is based, including materials bearing on the nature and extent of injuries suffered.

46 C.F.R. § 502.141.

20. Complainant Honest has not provided the required disclosures, in violation of the Commission's Rules and the Presiding Officer's Scheduling Order.

21. IWG's unsigned submission is also not only incomplete but a fraud upon the tribunal.

22. These failures prejudice Respondent by impairing its ability to conduct discovery, evaluate the merits of the case, and proceed efficiently.

23. Section 502.150 authorizes the Presiding Officer to compel compliance with the requirement for initial disclosures. 46 C.F.R. § 502.150.

24. Absent an order compelling compliance, Respondent will continue to suffer prejudice, and the orderly progression of this proceeding may be disrupted.

25. Therefore, for the reasons set forth, Respondent respectfully requests that the Presiding Officer issue an order compelling Complainants to immediately serve their respective initial disclosures – complete and signed.

CERTIFICATION OF CONFERENCE

The undersigned hereby certifies that he has attempted to confer with Complainant Honest Trading International LLC to make initial disclosure in an effort to obtain compliance without the necessity of a motion. The details of the attempts to conference are set forth above.

Dated: December 24, 2025

Respectfully submitted,

SPECTOR RUBIN, P.A.

By: /s/ Robert Borak

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***Counsel for Respondent, DB Schenker
USA, Inc.***

CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true and correct copy of the forgoing was served on December 24, 2025, via electronic mail, which shall notify all parties of record on this matter.

By: /s/ Robert Borak
Robert M. Borak, Esq.